

POOOL Affiliate Privacy Notice

Phase 1 – Controlled Referral Program

Effective Date: [DATE]

Entity: [POOOL OPERATING ENTITY]

Privacy Contact: [PRIVACY CONTACT EMAIL / FORM / ADDRESS]

1. Introduction

This Affiliate Privacy Notice (“**Notice**”) explains how [POOOL OPERATING ENTITY] (“**POOOL**,” “**we**,” “**us**,” or “**our**”) processes personal data in connection with the POOOL Affiliate Program (the “**Program**”).

This Notice applies to:

- people who apply to become Affiliates,
- approved Affiliates,
- suspended, restricted, or reactivated Affiliates,
- and, where relevant, individuals whose data is processed in connection with affiliate onboarding, referral tracking, qualification, payout handling, compliance review, or program administration.

This Notice is intended to provide a clear external explanation of POOOL’s affiliate-program data handling. It should be read together with the Affiliate Terms & Conditions and other related Program documents where relevant.

2. What this Notice covers

This Notice covers how we process personal data for purposes such as:

- reviewing affiliate applications,
- onboarding and verification,
- managing affiliate accounts,
- tracking referrals,
- determining qualified referrals,
- handling commissions, payouts, and tax-related workflows,
- monitoring compliance,
- detecting fraud or abuse,

- handling complaints, disputes, and investigations,
- protecting security,
- and maintaining operational, audit, and evidence records.

3. Categories of data we process

Depending on the workflow, we may process the following categories of data.

A. Identity and profile data

This may include:

- full name,
- email address,
- phone number,
- country or residency information,
- account identifiers,
- and profile, channel, or public-facing affiliate information submitted as part of an application or account profile.

B. Application and onboarding data

This may include:

- affiliate application details,
- intended promotion channels,
- onboarding responses,
- document-acceptance records,
- training completion records,
- quiz or knowledge-check records,
- and related onboarding status information.

C. Verification and KYC-related data

Where required for the Program, this may include:

- identity-verification status,
- supporting verification documents or related document metadata,
- KYC review results,
- and related review notes or status flags.

[LEGAL REVIEW REQUIRED]

D. Referral and attribution data

This may include:

- affiliate ID,
- referral link or code ID,
- attribution timestamps,
- source, campaign, or channel metadata,
- referral status,
- qualification status,
- commission status,
- and tier-related tracking data.

E. Qualification, payout, and finance data

This may include:

- qualifying referral event data,
- first eligible paid investment status,
- holdback/review status,
- payout status,
- payout beneficiary details,
- tax profile data,
- withholding/review status,
- and payout history.

F. Complaint, monitoring, and investigation data

This may include:

- complaint records,
- support records,
- case notes,
- moderation or compliance review records,
- content review records,
- suspension, freeze, offset, or clawback records,
- and other records required to operate, protect, or evidence the Program.

G. Technical, usage, and audit-log data

This may include:

- account activity logs,
- login/session information,
- device or browser information where available,
- IP-related or security metadata where used,
- audit trails,
- and system event history relevant to security, fraud prevention, or program administration.

[LEGAL REVIEW REQUIRED]

4. Why we process affiliate-program data

We process affiliate-program data only for defined Program-related purposes, including:

A. Program application and onboarding

To receive, review, assess, and process affiliate applications and onboarding steps.

B. Identity, verification, and eligibility review

To verify identity where required, assess eligibility, and complete onboarding controls.

C. Affiliate account administration

To create, manage, maintain, restrict, suspend, reactivate, or close affiliate accounts.

D. Referral tracking and qualification

To attribute referrals, determine qualified referrals, apply holdback/review logic, and manage commission and tier status.

E. Payout and tax handling

To assess payout readiness, collect payout and tax information, apply finance review controls, and maintain payout records.

F. Compliance, monitoring, and enforcement

To monitor Program conduct, review the use of approved materials, investigate complaints, detect policy breaches, and apply freezes, suspensions, clawbacks, or other enforcement steps where required.

G. Fraud prevention and security

To detect, prevent, investigate, and respond to fraud, abuse, self-referrals, referral rings, account misuse, suspicious payout behavior, and other integrity or security risks.

H. Support, complaints, and dispute handling

To respond to affiliate questions, customer complaints, referral disputes, payout disputes, and case-handling workflows.

I. Audit, legal, and operational governance

To maintain logs, records, evidence trails, and internal accountability required for Program governance, legal/compliance review, audit readiness, and operational control.
[LEGAL REVIEW REQUIRED]

5. Minimum-data principle

We aim to process only the data reasonably necessary to operate, protect, review, pay, and govern the Program.

This means we aim to:

- collect only the data needed for a defined purpose,
- avoid collecting unnecessary data,
- limit access by role,
- reduce unnecessary duplication where reasonably possible,
- and avoid showing more affiliate, customer, or case-level data than is necessary for the relevant workflow.

6. How we receive data

We may receive affiliate-program data:

- directly from you,
- from your use of the affiliate application, onboarding flow, or dashboard,
- from referral and attribution systems,
- from internal support, compliance, finance, or review workflows,
- from complaint or investigation workflows,
- and from approved technical systems used to operate the Program.

[LEGAL REVIEW REQUIRED]

7. How we use and share data internally

Affiliate-program data is used internally on a need-to-know basis.

Depending on the workflow, relevant data may be accessed by teams such as:

- affiliate operations,
- compliance,
- finance,
- support,
- product / engineering,
- legal / privacy review,
- and internal audit or management oversight.

Not every team has access to every data category. We aim to separate access based on function, role, and operational need.

8. External sharing and service providers

We may share affiliate-program data externally where reasonably necessary to operate, protect, support, or govern the Program, including with:

- approved service providers supporting identity verification, referral tracking, payout handling, secure storage, analytics, case handling, or technical infrastructure;
- professional advisers where needed for legal, tax, audit, compliance, or dispute purposes;
- competent authorities, regulators, courts, law enforcement bodies, or other third parties where disclosure is required or appropriate under applicable law;
- and, where relevant, recipients involved in a business transfer, restructuring, or similar corporate event.

[LEGAL REVIEW REQUIRED]

Where we use external providers or other third parties, we aim to do so in a controlled way and only to the extent reasonably necessary for the relevant purpose.

9. International access and transfers

Depending on POOOL's systems, providers, business structure, and the location of the relevant teams or tools, affiliate-program data may be accessed from, stored in, or transferred to more than one jurisdiction. Final cross-border wording, transfer controls, and jurisdiction-specific transfer language require legal review.

[LEGAL REVIEW REQUIRED]

10. Retention logic

We keep affiliate-program data for as long as it is reasonably needed for the purposes described in this Notice, including:

- onboarding and account administration,
- referral tracking and qualification,
- payout and tax handling,
- complaint and investigation handling,
- fraud prevention,
- security and audit logging,
- evidence preservation,
- and legal, tax, compliance, or record-retention needs.

[LEGAL REVIEW REQUIRED]

Retention may vary depending on the data category and case type. For example:

- rejected applications may be kept for a shorter or different period than active affiliate records,
- payout and tax records may require longer retention,
- complaint, investigation, freeze, dispute, offset, or clawback records may be retained longer where review, audit, fraud, or legal needs apply,
- and certain records may be held longer where preservation obligations, legal demands, or internal evidence-hold requirements apply.

[LEGAL REVIEW REQUIRED]

When data is no longer required and no retention obligation or hold applies, we aim to delete it, anonymize it, archive it out of active use, or otherwise handle it in line with our internal retention rules.

11. Access, correction, and control rights

Depending on applicable law and your relationship with POOOL, you may have rights relating to your personal data, such as the right to:

- request access,
- request correction,
- request updates,
- request deletion,
- request restriction of certain processing,
- object to certain processing,

- or request information about how your data is handled.
- [LEGAL REVIEW REQUIRED]**

These rights are not absolute and may be limited where:

- legal or tax retention applies,
 - fraud prevention or security review is required,
 - complaint or investigation handling is ongoing,
 - record-preservation obligations apply,
 - internal case integrity must be protected,
 - or another lawful exception applies.
- [LEGAL REVIEW REQUIRED]**

To make a privacy-related request, please use the contact details listed in this Notice. POOOL may ask for additional information reasonably needed to verify the request and respond appropriately.

[LEGAL REVIEW REQUIRED]

12. Security

We aim to protect affiliate-program data through appropriate technical and organizational measures, including:

- role-based access controls,
- authentication controls,
- logging and audit trails,
- secure storage practices,
- restricted internal access,
- and controlled handling of sensitive files such as verification, payout, tax, complaint, and investigation records.

[LEGAL REVIEW REQUIRED]

No system can be guaranteed to be completely risk-free. However, we aim to operate the Program with controlled access, documented procedures, and security-aware handling of affiliate-program data.

13. Incident and breach handling

If we become aware of an incident affecting affiliate-program data, we aim to assess and respond through our internal incident-handling process.

Depending on the facts, this may include:

- incident assessment,
- containment,
- internal escalation,
- remediation,
- evidence preservation,
- and notification steps where required by applicable law.

[LEGAL REVIEW REQUIRED]

The exact legal notification standard, timing, and scope may depend on the facts of the incident, the systems involved, and the applicable legal framework.

[LEGAL REVIEW REQUIRED]

14. Accuracy and affiliate responsibilities

You are responsible for providing accurate and current information in your affiliate application, payout profile, tax profile, and other Program-related submissions.

If your information changes, including your:

- legal name,
- payout beneficiary details,
- country or residency,
- tax status,
- or other material profile information,

you should update your information promptly through the approved process.

15. Program monitoring and records

Because the Program is a controlled referral program, POOOL may maintain records relating to:

- affiliate onboarding,
- document acceptance,
- training completion,
- referral tracking,
- qualification and payout decisions,
- complaint handling,
- compliance monitoring,

- and enforcement actions.

These records help us operate, protect, and evidence the Program in practice. This is consistent with the broader Program framework, including the Terms, which already state that affiliate-related and referral-related data may be processed for onboarding, attribution, qualification, payout and tax handling, fraud prevention, monitoring, complaints, investigations, and Program administration.

16. Eligibility and restricted users

The Program is not intended for unauthorized or ineligible participation. POOOL may apply eligibility and account controls where needed.

[LEGAL REVIEW REQUIRED]

17. Updates to this Notice

We may update this Notice from time to time to reflect:

- changes in the Program,
- changes in our workflows or tools,
- legal or compliance updates,
- or operational changes in how affiliate-program data is handled.

[LEGAL REVIEW REQUIRED]

Where appropriate, we may provide notice through the onboarding flow, affiliate dashboard, email, or other approved channels.

18. Contact

For affiliate-program privacy questions or requests, you may contact:

[POOOL PRIVACY / SUPPORT CONTACT]

[EMAIL / WEB FORM / ADDRESS PLACEHOLDER]

If POOOL later designates a more specific privacy contact, data contact, or rights-request channel, this section should be updated accordingly.

[LEGAL REVIEW REQUIRED]

D. Final legal-review flags only

1. Final controller / entity wording and contact details.

2. Final lawful-basis language and any jurisdiction-specific privacy wording.
3. Final rights-handling language, including which rights should be named explicitly and for which jurisdictions.
4. Final KYC-data wording and whether layered notice language is needed for verification processing.
5. Final service-provider / processor wording and whether adviser / regulator / restructuring disclosures should be narrowed or expanded.
6. Final international-access / cross-border-transfer wording.
7. Final retention periods by data category and case type.
8. Final incident / breach-notification wording and thresholds.
9. Final beneficiary / profile-change consequences where privacy and payout controls interact.
10. Final interaction with customer-facing privacy materials for referral-attribution data, if any.

E. Readiness note for internal review, operational use, and legal review

This revised draft is ready for:

- internal review,
- privacy / compliance workflow alignment,
- onboarding and dashboard implementation planning,
- and focused legal/privacy review.

It is stronger than the current file because it keeps the same substantive privacy logic while turning the document into a cleaner standalone **external privacy notice**, rather than a mixed file containing the notice plus summary text, UI copy, backend notes, and recommendation material. It remains aligned with the approved baseline requirement for a separate Affiliate Privacy Notice, minimum-data handling, role-based controls, retention logic, and breach-response readiness.